

Court No. - 39

Case :- WRIT - C No. - 3869 of 2021

Petitioner :- Vikas Verma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Indra Sen Singh Vatsa

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondents no. 1 to 3 and Shri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondent no. 4.

The instant petition has been filed seeking following reliefs :

"(i) Issue a writ, order or direction in the nature of certiorari quashing in the impugned order dated 23.03.2020 and order dated 28.12.2017 passed by Executive Engineer, Purvanchal Vidyut Vitaran Nigam Limited, Vidyut Vitran Khand, Deoria;

(ii) Issue a writ, order or direction, directing the respondent no.4 to consider the real facts of the case and pass appropriate order regarding consumption of Electricity energy by the petitioner,

(iii) Issue a writ, order or direction directing the respondent no.4 to recall recovery/citation of Rs.1,66,689/-."

Learned Counsel for the Power Corporation submits that the petitioner has already approached the District Consumer Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 in which the proceedings in pursuance to the recovery citation has been stayed by the order dated 26.12.2017, yet the present petition has been filed for the same cause. In this regard a complaint made by the petitioner has been rejected by respondent no.4 and this fact has not been disputed by the learned counsel for the petitioner. The petitioner cannot be allowed to re-agitate the same cause by filing writ petition with impunity.

The present petition lacks merit and is, accordingly, **dismissed**.

Order Date :- 5.2.2021

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